



**PARLIAMENT OF THE DEMOCRATIC
SOCIALIST REPUBLIC OF
SRI LANKA**

**ALL CEYLON JEMMIYATHUL ULAMA
(INCORPORATION) ACT, No. 51 OF 2000**

[Certified on 18th August, 2000]

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All Ceylon Jemmiyathul Ulama (Incorporation)
Act, No. 51 of 2000

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L.D.—0. 23/98.

AN ACT TO INCORPORATE THE ALL CEYLON JEMMIYATHUL
ULAMA

WHEREAS an Association comprising Muslim Theologians, called and known as the All Ceylon Jemmiyathul Ulama has heretofore been formed in Sri Lanka for the purpose of effectually carrying out and transacting all matters connected with the said Association according to the rules agreed to by its members :

Preamble.

AND whereas the said Association has heretofore successfully carried out and transacted the several objects and matters for which it was formed and has applied to be incorporated and it is for the public advantage to grant such application :

BE it therefore enacted by the Parliament of the Democratic Socialist Republic of Sri Lanka as follows :—

1. This Act may be cited as the All Ceylon Jemmiyathul Ulama (Incorporation) Act, No. 51 of 2000.

Short title.

2. From and after the date of commencement of this Act, such and so many persons as are members of the All Ceylon Jemmiyathul Ulama (hereinafter sometimes referred to as the “Jemmiya”) or shall hereafter be admitted as members of the Corporation hereby constituted, shall be a body corporate (hereinafter referred to as the “Corporation”), with perpetual succession under the name and style of the “All Ceylon Jemmiyathul Ulama”, and by that name may sue and be sued in all courts, with full power and authority to have and use a common seal and alter the same at its pleasure.

Incorporation of
the All Ceylon
Jemmiyathul
Ulama.

3. The general objects for which the Corporation is constituted are hereby declared to be—

General objects of
the Corporation.

(a) to promote and Protect “Dheen Ul Islam” (the ideology of Islam) ;

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- (b) to promote and foster unity in the Muslim community in general and among the Ulama (Islamic theologians) in particular ;
- (c) to promote the cultural, social and economic welfare of the Muslims, in accordance with Islam ;
- (d) to organize, and co-ordinate Jumma sermons of congregational prayers ;
- (e) to publish books, periodicals and journals in Sinhala, Tamil and English languages and to establish a well equipped library or libraries, in order to foster a better understanding of Islam by Muslims and persons practising other religions ;
- (f) to promote the study of the Arabic Language ;
- (g) to promote inter communal amity ;
- (h) to establish branches and sub-branches of the Corporation in each of the administrative districts of the republic ; and
- (i) to do all such acts and things as are necessary for, or conducive or incidental to, the attainment of the objects of the Corporation.

General powers of
the Corporation.

4. Subject to the provisions of this Act or any other written Law, the Corporation shall have the power to do, perform and execute all such acts, matters, and things whatsoever, as are necessary or desirable for the promotion or furtherance of the objects of the Corporation or any one of them, including the power to open, operate and close bank accounts, to borrow or raise any money with or without security, to receive or collect grants and donations, to invest its funds, and to engage, employ and dismiss officers and servants required for the carrying out of the objects of the Corporation.

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5. (1) The affairs of the Corporation shall, subject to the rules in force for the time being of the Corporation, be administered by an Executive Committee, consisting of such number of persons to be elected in accordance with the rules in force, for the time being, of the Corporation.

Management of
the affairs of the
Corporation.

(2) The first Executive Committee of the Corporation shall be the members of the Executive Committee of the Jemmiyah holding office on the day preceding the date of commencement of this Act.

6. (1) It shall be lawful for the Corporation, from time to time, at a general meeting and by a majority of not less than two-thirds of the number of members present and voting at such meeting to make rules, not inconsistent with the provisions of this Act or any other written law for the procedure to be followed in the transaction of business, and otherwise generally, for the management of the affairs of the Corporation and the accomplishment of its objects. Such rules when made may, at a like meeting in like manner be altered, added to, amended or rescinded.

Rules of the
Corporation.

(2) The rules of the Jemmiyah in force on the day preceding the date of commencement of this Act shall be deemed to be the rules of the Corporation made under this section in so far as they are not inconsistent with the provisions of this Act or any other written law and may be altered, added to, amended, rescinded or replaced by rules made under this Act at a meeting and in the manner as aforesaid.

(3) All members of the Corporation shall be subject to the rules in force for the time being of the Corporation.

7. All debts and liabilities of the Jemmiyah existing on the day preceding the date of commencement of this Act, shall be paid by the Corporation hereby constituted, and all debts due to, and subscriptions and contributions payable to, the Jemmiyah on that day, shall be paid to the Corporation for the purposes of this Act.

Debts due by and
payable to the
Jemmiyah.

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How the seal of
the Corporation to
be affixed.

8. The seal of the Corporation shall not be affixed to any instrument whatsoever except in the presence of two of the members of the Executive Committee, who shall sign their names to the instrument in token of their presence, and such signing shall be independent of the signing of any person as a witness.

Corporation may
hold property
movable or
immovable.

9. The Corporation shall, subject to the rules in force for the time being of the Corporation, be capable in law to acquire and hold any property, movable or immovable, which may become vested in it by virtue of any purchase, grant, gift, testamentary disposition or otherwise, and all such property shall be held by the Corporation for the purposes of this Act and subject to the rules in force for the time being of the Corporation, with full power to sell, mortgage, lease, exchange or otherwise dispose of the same.

Saving of the
rights of the
Republic and
others.

10. Nothing in this Act contained shall prejudice or affect the rights of the Republic, or of any body politic or corporate or of any other persons, except such as are mentioned in this Act, and those claiming by, from or under them.

Sinhala text to
prevail in case of
inconsistency.

11. In the event of any inconsistency between the Sinhala and Tamil texts of this Act, the Sinhala text shall prevail.

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